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January 27, 2017					
FEDERAL MARITIME COMMISSION					

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DOCKET NO. 16-16

**MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY**

v.

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER

**ORDER STAYING PROCEEDING PENDING
COMMISSION DECISION ON EXCEPTIONS**

The parties appeared for a telephone conference on January 27, 2017, at 2:04 PM. Complainants MAVL Capital Inc. (MAVL), IAM AL Group Inc. (IAM), and Maxim Ostrovskiy were represented by attorney Marcus Nussbaum, respondent Marine Transport Logistics, Inc., was represented by attorney Eric Chang, and respondent Dimitry Alper was represented by attorney Peter Cipparulo. An audio recording was made of the conference and forwarded to counsel. The Commission does not intend to create a written transcript of the conference.

Complainants' Complaint alleged that Respondents violated sections 41102(c), 41104(3), and 41104(10) of the Shipping Act of 1984, 46 U.S.C. §§ 41102(c), 41104(3), and 41104(10), and the Commission's regulations at Part 515, in connection with certain vehicles allegedly owned by Complainants. On January 17, 2017, an Initial Decision was served dismissing the claims for all but one vehicle. *MAVL Capital Inc., IAM AL Group Inc., and Maxim Ostrovskiy v. Marine Transport Logistics, Inc. and Dmitry Alper*, FMC No. 16-16 (ALJ Jan. 17, 2017) (Initial Decision Partially Dismissing Complaint). A second order places limitations on discovery because of discovery that has already occurred between the parties in a proceeding in federal district court and requires a party seeking to take additional discovery to file a motion identifying the discovery it seeks to take and why discovery already taken in the federal district court case was not sufficient. *MAVL Capital Inc., IAM AL Group Inc., and Maxim Ostrovskiy v. Marine Transport Logistics, Inc. and Dmitry Alper*, FMC No. 16-16 (ALJ Jan. 17, 2017) (Order Modifying Initial Order).

On January 26, 2017, Complainants filed a Motion for an Enlargement of Time to Move for Leave to Seek Discovery and for Other Relief. Complainants' motion states that Complainants believe they will need "to take the depositions of the respondents and various non-parties to this matter, none of which were taken in the ongoing Federal litigation. Additionally, complainants desire to proceed with expert discovery herein, also not taken in the Federal matter." (Complainants' Motion for an Enlargement of Time to Move for Leave to Seek Discovery and for Other Relief at 3.) They believe that if the Commission remands the claims dismissed in the Initial Decision, any discovery allowed may need to be retaken. Complainants request:

[A]n Order enlarging the February 2, 2017 due date for the filing of discovery related motions in this matter until twenty-two (22) days after the issuance of a decision by the Commission with respect to complainants' Exceptions, and/or staying the proceedings herein pending the Commission's decision on complainants' Exceptions to the ID.

(*Id.* at 4.) The motion and the email chain attached to it indicated that Respondents "consent to the 22-day enlargement of time for the February 2, 2017 due date for the filing of discovery motions, but our consent is contingent upon the February 8, 2017 due date for the filing of exceptions remaining in place." Respondents' position on the request to stay the proceeding was not clear.

The undersigned scheduled the conference to discuss Complainants' motion. Counsel for each Respondent stated that Respondents do not object to staying this proceeding pending the Commission's decision on exceptions to the January 17, 2017, decision.

Considering the motion, the agreement of the parties, and the discussion in the conference, Complainants' request is reasonable. Complainants' fear of potential duplicative discovery is well-taken. There is no ongoing relationship or active shipment to be addressed in this proceeding. Therefore, it is hereby

ORDERED that Complainants' motion for stay be **GRANTED**. This proceeding is stayed pending the Commission's decision on exceptions to the January 17, 2017, Initial Decision to be filed by Complainants; **PROVIDED**, if Complainants do not file timely exceptions to the Initial Decision, this order is **VACATED** and the discovery motions required by the January 17, 2017, Order Modifying Initial Order must be filed on or before February 16, 2017, and oppositions to discovery motions must be filed on or before March 2, 2017.


Clay G. Guthridge
Administrative Law Judge